

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT ALLOWING A CLAIMANT TO REQUEST AND RECEIVE
5 INFORMATION ON A TORTFEASOR'S LIABILITY INSURANCE LIMITS BEFORE INITIATING LITIGATION;
6 PROVIDING THAT IN ANY SUBSEQUENT LITIGATION, A COURT MAY IMPOSE SANCTIONS FOR
7 FAILURE TO COMPLY WITH PREFILING A REQUEST; AND PROVIDING AN IMMEDIATE EFFECTIVE
8 DATE."

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10 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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12 NEW SECTION. **Section 1. Prefiling of request for insurance information.** (1) Prior to filing an
13 action in district court to recover damages for personal injury or wrongful death, a claimant may at any time
14 serve on the insurer of a potentially responsible party a request for a statement setting forth the existence of
15 and limits of any liability insurance agreement that may be available to:

16 (a) satisfy part or all of a judgment that may be entered in a subsequently filed action; or

17 (b) indemnify or reimburse for payments made to satisfy a judgment against the party.

18 (2) The request must be signed by the attorney for the requesting party, or by the requesting party
19 if unrepresented, and must include a statement that:

20 (a) the request is made for the purpose of evaluating a claim for personal injury or death;

21 (b) to the best of the signer's knowledge, information, and belief formed after reasonable inquiry,
22 the claim is well-grounded in fact and is warranted by existing law or a good faith argument for the extension,
23 modification, or reversal of existing law; and

24 (c) the request is not interposed for any improper purpose, such as to harass or to cause
25 unnecessary delay or needlessly increase the cost of litigation.

26 (3) (a) The insurer shall reply with a responsive statement as to the existence of and limits of
27 insurance within 45 days after service of the request.

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(b) If a response is not served, the claimant, on notice to the insurer, may petition the court in which an action is subsequently filed to impose sanctions on the insurer for failure to comply.

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4 (c) Information concerning the insurance agreement is not by reason of disclosure admissible in
5 evidence at trial.

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7 (d) For the purposes of this section, an application for insurance may not be treated as part of an

8 insurance agreement.

9 (4) Disclosure of information by an insurer pursuant to subsection (1) must be made in accordance
10 with the provisions of the Insurance Information and Privacy Protection Act, Title 33, chapter 19.

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12 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an

13 integral part of Title 27, chapter 1, part 2, and the provisions of Title 27, chapter 1, part 2, apply to [section 1].

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15 NEW SECTION. **Section 3. Effective date.** [This act] is effective on passage and approval.

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